Harris County District Court

Cause No. 2026-CV-0003

Nancy Johnson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	2-22-26
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant generally denies the allegations and requests that Plaintiff be required to prove the charges and allegations by a preponderance of the evidence.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses. First, Plaintiff's own negligence proximately caused or contributed to the collision, including failure to keep a proper lookout and failure to confirm that the adjacent lane was clear before Plaintiff moved into it. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by Plaintiff's percentage of responsibility, and Pliantiff may be barred entirely if that percentage exceeds fifty percent. Second, Plaintiff failed to mitigate damages by declining or delaying reasonable medical treatment and by failing to return to available work. Any recovery must be reduced accordingly. Third, Defendant invokes the credit and offset provisions of Section 41.0105 of the Texas Civil Practice and Remedies Code, limiting recovery of medical expenses to amounts actually paid or incurred by or on behalf of Plaintiff.